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johnsok
By _____, Deputy
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SUPERIOR COURT FOR THE STATE OF CALIFORNIA
FOR THE COUNTY OF SACRAMENTO

NAEEM MOHD Plaintiff eStCru, LLC, WILLIAM HAILER, TIMOTHY MYNETT Defendants	))))))))))	CASE NO. COMPLAINT

BY FAX

INTRODUCTION

1. This claim is based on Defendants' breach of contract for failure to pay money owed to Plaintiff under the Member Units Purchase Agreement signed by the parties
2. Defendants Hailer and Mynett both personally guaranteed the payment owed to Plaintiff and are liable to pay any amounts owed to Plaintiff under the contract.

PARTIES

3. Plaintiff, Naeem Mohd, is an individual whose sole residence is located in the Commonwealth of Virginia.

4. Defendant, eStCru, LLC, is a limited liability company organized under the laws of California with its business address located at 422 Larkfield Center #400, Santa Rosa, CA 95403.

5. Defendant, William Hailer, is an individual whose sole residence is located in the State of California, and is a managing member of eStCru, LLC.

6. Defendant, Timothy Mynett, is an individual whose sole residence is located in the State of Minnesota, and is a managing member of eStCru, LLC.

JURISDICTION AND VENUE

7. The Court has personal jurisdiction over Defendants because the parties agreed to be subject to any litigation under the contract in the County of Sacramento court.

8. The Court has subject matter jurisdiction because the amount in controversy exceeds the Court's jurisdictional amounts. Superior Court of California for the County of Los Angeles is a court of general jurisdiction and therefor has jurisdiction over this matter.

9. Venue is proper in this Court pursuant to the agreement of the parties.

FACTUAL BACKGROUND

10. On or about September 14, 2021, Plaintiff Mohd entered into a Membership Units Purchase Agreement with eStCru, LLC.

11. The agreement was signed by William Hailer and Timothy Mynett, the managing members of eStCru, LLC.

12. The parties agreed that upon execution of the agreement, Plaintiff Mohd would purchase twenty thousand (20,000) membership units of eStCru, LLC for the price of three hundred thousand dollars ($300,000.00).

13. The parties further agreed that within eighteen months of the execution of the agreement, eStCru, LLC would pay Plaintiff Mohd a return of his investment equal to 200% of his initial investment of three hundred thousand dollars ($300,000.00).

14. Defendants knew this statement to be false.

15. Plaintiff relied on this statement to his detriment when he gave Defendants three hundred thousand dollars ($300,000.00).

16. By March 2023, Plaintiff Mohd was to receive nine hundred thousand dollars ($900,000.00) from eStCru, LLC.

17. The Parties agreed that a 10% monthly interest would be imposed on any money not paid to Mr. Mohd by the deadline.

18. Both William Hailer and Timothy Mynett personally guaranteed this return of Plaintiff Mohd's investment to Mr. Mohd.

19. Both Hailer and Mynett knew they would not pay Plaintiff the money they promised to pay him.

20. After execution of this Agreement, Plaintiff Mohd wired the $300,000 to eStCru to their bank.

21. The initial investment of $300,000 was due to Plaintiff Mohd on or about September 30, 2022.

22. However, Defendants did not return the initial $300,000 until on or about November 1, 2022.

23. Defendants, despite numerous assurances to Plaintiff that they would pay him the remaining money owed, have also not paid Plaintiff Mohd the $600,000 return owed to him.

24. Plaintiff Mohd only invested the money because he was receiving a return of 200%.

25. This remaining unpaid amount is subject to 10% monthly interest since March 2023.

26. As a result of Defendants' failure to pay the money owed to Plaintiff, Plaintiff has been damaged in the amount of at least seven hundred and eighty thousand dollars ($780,000.00), the specific amount to be determined at trial.

27. In or around July and August of 2023, Will Hailer stated to Plaintiff that in order to sell the company and get Plaintiff to sign a Redemption Agreement for his shares.

28. Hailer stated that upon advice from their counsel, they could not close unless Plaintiff signed the Redemtpion agreement.

29. At all times, they represented that the closing would take place on September 29, 2023.

30. At all times, Defendants never stated there was any issue with the closing taking place.

31. Then suddenly, on October 2, 2023, Defendants stated the closing did not take place without any explanation.

32. Upon information and belief, Defendants conspired and conducted this scheme of having Plaintiff sign the redemption agreement in order to keep him from filing suit against them.

COUNT I:
BREACH OF CONTRACT
ALL DEFENDANTS

33. Plaintiff reiterates the allegations set forth in Paragraphs 1 through 23 as if fully listed herein.

34. The Parties had a valid contract between them.

35. Plaintiff Mohd performed his end of the contract by providing a $300,000.00 investment to eStCru, LLC.

36. Defendants promised to pay Plaintiff Mohd a total of $900,000.00 by March 2023.

37. Defendants failed to meet their obligation, and only paid Plaintiff Mohd a total of $300,000.00.

38. Thus, Defendants breached their contract with Plaintiff, causing Plaintiff significant damages of at least $780,000.00.

COUNT II:
FRAUD
ALL DEFENDANTS

39. Plaintiff reiterates the allegations set forth in Paragraphs 1 through 29 as if fully listed herein.

40. Defendants fraudulently misrepresented to Plaintiff that estCru, LLC was a legitimate company and that they would return his investment by 200% within eighteen (18) months.

41. Defendants knew this statements to be false and made the statements with the intent to induce Plaintiff to give them three hundred thousand dollars ($300,000.00).

42. Plaintiff justifiably relied on Defendants' misrepresentations which resulted in significant damages.

CONCLUSION

WHEREFORE, the Plaintiff respectfully requests that this Court:

1. Award Plaintiff any and all financial, economic and compensatory damages entitled to by law, on Count I;
2. Award Plaintiff other monetary damages, including punitive damages, that they may be entitled to under the law; in addition
3. Award appropriate pre-judgment and post judgment interest; in addition
4. Award expert fees and attorney's fees and cost of this action as may be permitted by law; in addition
5. Award any other relief the Court deems just and appropriate.

JURY TRIAL DEMANDED

PLAINTIFF DEMANDS A JURY BY TRIAL ON ALL COUNTS.

Respectfully Submitted,

/S/ FAISAL GILL_____
Faisal Gill (SBN 263416)

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SUPERIOR COURT OF CALIFORNIA
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